REVISED POLICY - VOL. 35, NO. 1

STANDARDS-BASED TEACHER/COUNSELOR EVALUATION

The Board of Education is responsible for a standards-based teacher evaluation policy which conforms to the framework for evaluation of teachers as approved by the State Board of Education and aligns with the "Standards for the Teaching Profession" as set forth in State law.

The Board adopts the Ohio Teacher Evaluation System ("OTES") model as approved by the State Board of Education.

The Board believes in the importance of ongoing assessment and meaningful feedback as a powerful vehicle to support improved teaching performance and student growth, as well as promotion and retention decisions for teachers.

This policy shall be implemented as set forth herein and shall be included in the collective bargaining agreement with the Brecksville-Broadview Heights Education Association, and in all extensions and renewals thereof.

This policy has been developed in consultation with teachers employed by the Board.

The Board authorizes the Superintendent to establish and maintain an ongoing Brecksville-Broadview Heights Evaluation Committee with continuing participation by District teachers for the express purpose of recommending necessary changes to the Board for the appropriate revision of the policy.

Definitions

"**OTES**" **-** Stands for the Ohio Teacher Evaluation System as adopted by the Ohio State Board of Education in 2011, or as otherwise modified by the State Board of Education.

"**Teacher**" – For purposes of this policy, "teacher" means licensed instructors who spend at least fifty percent (50%) of his/her time providing content-related student instruction and who is working under one (1) of the following:

A. A license issued under R.C. 3319.22, 3319.26, 3319.222 or 3319.226; or

B. A permanent certificate issued under R.C. 3319.222 as it existed prior to September, 2003; or

C. A permanent certificate issued under R.C. 3319.222 as it existed prior to September, 2006; or

D. A permit issued under R.C. 3319.301.

"**School Counselor**"– For purposes of this policy, "school counselor" means an employee who holds a license issued pursuant to O.A.C. 3301-24-05 by the Ohio Department of Education in the area of school counseling and who is assigned to a position in that capacity.

"**OSCES**" **-** Stands for the Ohio School Counselor Evaluation System as adopted by the Ohio State Board of Education, or as otherwise modified by the State Board of Education.

Substitute teachers, teachers not meeting this definition, and other employees are not subject to evaluation under this policy. Full time bargaining unit members who do not meet the definition will be evaluated utilizing the evaluation procedures of the collective bargaining agreement in effect between the Board and the Brecksville-Broadview Heights Education Association.

The Superintendent, Treasurer, and any "other administrator" as defined by R.C. 3319.02 are not subject to evaluation under this policy.

"**Credentialed Evaluator**" - For purposes of this policy, each teacher and or counselor subject to evaluation will be evaluated by a person who:

A. meets the eligibility requirements under R.C. 3319.111(D); and

B. holds a credential established by the Ohio Department of Education (ODE) for teacher evaluation; and

C. has completed State-sponsored evaluation training and has passed an online credentialing assessment; and/or

D. has completed the OSCES training as required by the Ohio Department of Education.

The Board will approve and maintain a list of credentialed evaluators comprised of district and building administrators within the district as necessary to effectively implement this policy.

"**Core Subject Area**" – means reading and English language arts, mathematics, science, foreign language, government, economics, fine arts, history and geography.

"**Student Growth**" – for the purpose of the District's evaluation policy, student growth is defined as the change in student achievement for an individual student between two (2) or more points in time.

"**Student Learning Objectives**" **("SLOs")** - include goals identified by a teacher or group of teachers that identify expected learning outcomes or growth targets for a group of students over a period of time.

"**Shared Attribution Measures**" – student growth measures that can be attributed to a group.

"**Value-Added**" – refers to the EVAAS Value-Added methodology provided by SAS, Inc., which provides a measure of student progress at the District and school level based on each student's scores on State-issued standardized assessments.

"**Vendor Assessment**" – student assessments approved by the Ohio Department of Education (ODE) that measure mastery of the course content for the appropriate grade level, which may include nationally normed standardized assessments, industry certification exams, or end-of-course examinations for grade level and subjects for which the Value-Added measure does not apply.

"**Evaluation Cycle**" – is the period of time for the completion of the evaluation procedure. The evaluation cycle is completed when student growth measures/metrics resulting from assessments that were administered in the previous school year are combined with the teacher/counselor performance ratings resulting from performance assessments that are conducted for the current school year to assign a summative evaluation rating.

"**Teacher Evaluation Factors**" – refers to the multiple measures that are required by law to be used in the teacher evaluation procedure. The two (2) factors, which are weighted equally, are student growth measures at fifty percent (50%) and teacher performance at fifty percent (50%).

"**Counselor Evaluation Factors**"– refers to the multiple measures that are required by law to be used in the school counselor evaluation procedures, including performance on all six (6) areas identified by the standards and the ability to produce positive outcomes using student metrics selected by the Board. School counselors will receive a score in each of the six standards and the student metrics, which shall be weighted equally (1/7 of the final summative score).

"**Evaluation Framework**" – means the document created and approved by the Ohio Department of Education (ODE) in accordance with R.C. 3319.111(A) that establishes the standards-based framework for the evaluation of teachers/counselors developed under R.C. 3319.112 & 3319.113.

"**Evaluation Instruments**" – refers to the forms developed by the ODE and locally developed forms for counselors when needed

"**Evaluation Procedure**" – the procedural requirements set forth in this policy are intended to provide specificity to the statutory obligations established under R.C. 3319.111 and R.C. 3319.112 and to conform to the framework for the evaluation of teachers developed under R.C. 3319.112 & 3319.113.

"**Evaluation Rating**" – means the final summative evaluation level that is assigned to a teacher/counselor pursuant to terms of this policy. The evaluation rating is assigned at the conclusion of the evaluation cycle when the evaluation factors are combined. Each completed evaluation will result in the assignment of one (1) of the following evaluation ratings: Accomplished, Skilled, Developing, or Ineffective.

"**Teacher/Counselor Performance**" – is the assessment of a teacher's/counselor's performance, resulting in a performance rating. As an evaluation factor, the teacher/counselor performance dimension is based on direct observations of a teacher's/counselor's practice (including materials and other instructional artifacts) and walkthroughs/informal observations that are performed by a credentialed evaluator. Teacher/counselor performance results are reported as a teacher/counselor performance rating that may be coded as "1" indicating lowest performance to "4" indicating highest performance.

"**Teacher-Student Data Linkage**" (TSDL) – refers to the process of connecting the teacher(s) of record (based upon above definition) to a student and/or defined group of students' achievement scores for the purpose of attributing student growth to that teacher.

"**Student Metrics**" - the locally determined measure(s) that assess a school counselor's ability to produce positive student outcomes.

Standards-Based Teacher/Counselor Evaluation

Teacher/Counselor evaluations will utilize multiple factors, with the intent of providing meaningful feedback to each teacher/counselor and assigning an effectiveness rating based upon teacher/counselor performance, student growth/metric, and other locally determined criteria.

Each teacher evaluation will result in an effectiveness rating of:

A. Accomplished;

B. Skilled;

C. Developing; or

D. Ineffective.

The specific standards and criteria for distinguishing between these ratings/levels of performance shall be the same as those developed by the State Board of Education, which are incorporated herein by reference.

The Superintendent shall annually cause to be filed a report to the Ohio Department of Education (ODE) the number of teachers/counselors for whom an evaluation was conducted as well as the number of teachers/counselors assigned each rating as set forth above, aggregated by teacher/counselor preparation programs from which and the years in which the teachers/counselors graduated. The Board will utilize the ODE's guidelines for reporting this information.

The Board may elect not to evaluate a teacher who was on leave from the School District for fifty percent (50%) or more of the school year and/or submitted notice of retirement that was accepted by the Board no later than November 15th of the year the teacher was scheduled to be evaluated.

Assessment of Teacher Performance

Teacher performance will be evaluated during formal observations and periodic informal observations also known as "classroom walkthroughs." Such performance, which will comprise fifty-percent (50%) of a teacher's effectiveness rating, will be assessed through a holistic process by trained and credentialed evaluators based upon the following *Ohio Standards for the Teaching Profession:*

A. understanding student learning and development and respecting the diversity of the students they teach;

B. understanding the content area for which they have instructional responsibility;

C. understanding and using varied assessment to inform instruction, evaluate and ensure student learning;

D. planning and delivering effective instruction that advances individual student learning;

E. creating learning environments that promote high levels of learning and student achievement;

F. collaborating and communicating with students, parents, other educators, District administrators and the community to support student learning; and

G. assuming responsibility for professional growth, performance and involvement.

Assessment of School Counselor Performance

School Counselor performance will be evaluated during formal observations and periodic informal observations. Such performance will be assessed through a holistic process by trained and credentialed evaluators based upon the following *Ohio Standards for School Counselors:*

A. Comprehensive School Counseling Program Plan;

B. Direct Services for Academic, Career and Social/Emotional Development;

C. Indirect Services – Partnerships and Referrals;

D. Evaluation and Data;

E. Leadership and Advocacy; and

F. Professional Responsibility, Knowledge and Growth.

Formal Observation and Classroom Walkthrough Sequence

A. All instructors who meet the definition of "teacher" and/or "counselor" under R.C. 3319.111 & 3319.113 and this policy shall be evaluated based on at least two (2) formal observations of at least thirty (30) minutes each and periodic classroom walkthroughs or informal observations each school year.

B. Teachers/Counselors on a limited contract who are under consideration for renewal/nonrenewal shall receive at least three (3) formal observations in addition to periodic classroom walkthroughs unless the Superintendent waives the third observation.

C. A teacher/counselor who has been granted a continuing contract by the Board and who receives a rating of "Accomplished" on his/her most recent evaluation may be evaluated every three (3) years, as long as the teacher's/counselor's academic growth measure/metric for the most recent year for which data is available, is average or higher. If the determination is made to evaluate every three (3) years, the teacher/counselor will nevertheless be provided with at least one (1) observation and post conference in any year that such teacher/counselor is not formally evaluated.

D. The Board may evaluate each teacher/counselor who has been granted a continuing contract by the Board and who received a rating of Skilled on the teacher's/counselor's most recent evaluation once every two (2) years, so long as the teacher's student academic growth measure, for the most recent school year for which data is available, is average or higher. If the determination is made to evaluate every other year, the teacher/counselor will be provided with at least one (1) formal observation and a conference in any year that such teacher/counselor is not formally evaluated.

Evaluations will be completed by May 1st and each teacher/counselor will be provided a written report of the results of his/her evaluation by May 10th. Written notice of nonrenewal will be provided by June 1st.

In evaluating teacher/counselor performance in these areas, the Board shall utilize the measures set forth by the Ohio Department of Education's OTES "Teacher Performance Evaluation Rubric" for instructional planning, instruction and assessment, and professionalism.

Each teacher/counselor evaluated under this policy may complete a "Self-Assessment" utilizing the Self Assessment Summary Tool set forth herein as "Teacher/Counselor Evaluation Form" in the years where a formal evaluaton occurs.

Formal Observation Procedure

School counselor observations will not be conducted when they are engaged in counseling activities with students that require confidentiality.

A. All formal observations shall be preceded by a conference between the evaluator and the employee prior to the observation in order for the employee to explain plans and objectives for the classroom situation to be observed.

B. A post-observation conference shall be held after each formal observation.

Informal Observation/Classroom Walkthrough Procedure for Teachers

A walkthrough is a formative assessment process that focuses on one (1) or more of the following components and results in brief written notes or a summary:

A. evidence of planning

B. lesson delivery

C. differentiation

D. resources

E. classroom environment

F. student engagement

G. assessment, or

H. any other component of the standards and rubrics approved for teacher evaluation

An informal observation for a counselor is a formative assessment process that focuses on one (1) or more of the components included in the State-adopted standards.

A walkthrough/informal observation shall consist of at least (5) consecutive minutes, but not more than (10) consecutive minutes in duration. The walkthrough/informal observation should be of sufficient duration to allow the evaluator to assess the focus of the walkthrough/informal observation.

Data gathered from the walkthrough/informal observation must be placed on the appropriate designated form. Written feedback from walkthroughs shall be provided after the walkthrough. The teacher/counselor and or administrator may request a face-to-face meeting to discuss observations relative to the identified focus of the walkthrough.

A. Classroom walkthroughs/informal observations shall not unreasonably disrupt and/or interrupt the learning environment.

B. The completed form must be shared with the employee within five (5) calendar days.

Assessment of Student Growth

In determining student growth measures, the Board adopts the Ohio Department of Education's Ohio Teacher Evaluation System (OTES), which calculates student growth by assessing achievement for an individual student occurring between two (2) points in time. It is important to note that a student who has forty-five (45) or more absences for the school year will not be included in the determination of student academic growth.

Assessment of Student Metrics

The Board will select student metrics that will be utilized for school counselor evaluations in the areas of academics, career, and social emotional development. Any modifications to the metrics that will be used in school counselor evaluations will be adopted before the start of the school year.

Data from these approved measures of student growth will be scored on four (4) levels, with a score of "1" being the lowest and "4" being the highest.

In general, the Board will utilize the following categories to determine this aspect of a teacher's evaluation, depending upon the instructor involved:

A1. Teachers instructing in value-added subjects exclusively;

A2. Teachers instructing in value-added courses, but not exclusively[1];

OR

B. Teachers instructing in areas with Ohio Department of Education approved vendor assessments with teacher-level data available; or

C. Teachers instructing in areas where no teacher-level value-added or approved vendor assessment available.[2]

Where value-added methodologies exist for A1 and A2 teachers, the Board will utilize them in the evaluation process. Teachers instructing in value-added courses, but not exclusively, will utilize teacher value-added and locally determined measures proportionate to the teacher's schedule.

When an approved Ohio Department of Education vendor assessment is utilized in the measurement of student growth, it will be included in the evaluation process for "B" teachers.

When neither teacher-level value-added data nor Ohio Department of Education-approved assessments are available, the District shall use locally-determined Student Growth Measures for District teachers . Student Growth Measures may be comprised of SLOs, shared attribution, and/or non-Value-Added vendor data.

An SLO must be based upon the following criteria: Baseline and Trend Data, Student Population, Interval of Instruction, Standards and Content, Assessment(s), Growth Targets, and Rationale for Growth Targets. When new SLO's are developed or revised, the process will include consultation with teachers employed by the Board.

Data from these approved measures of student growth will be scored on five (5) levels in accordance with the Ohio Department of Education/OTES:

(5) Most Effective
(4) Above Average
(3) Average
(2) Approaching Average
(1) Least Effective

Final Evaluation Procedures

Each teacher's performance rating will be combined with the assessment of student growth measures to produce the summative evaluation rating, based upon the criteria developed by the Ohio Department of Education.

Each school counselor's performance rating for each of the six (6) standards will be combined with the assessment of student metrics to produce the final summative rating.

The evaluator shall provide that each evaluation is submitted to the teacher/counselor for his/her acknowledgement by written receipt. When signed, by the teacher/counselor, the receipt is to be sent to the Superintendent as soon as received.

Student Growth Measures (SGM)/Student Learning Objectives (SLO)

When utilizing vendor assessments to construct SGMs, all related materials shall be purchased by the Board and all affected staff shall be trained on utilization and other considerations by September 30th.

When utilizing SLOs to construct SGMs, the teacher shall submit the completed SLO template for approval of the SLO no later than October 1st.

A. The SLO Committee shall review all submitted SLOs by October 15th.

B. Any SLO that is rejected by the SLO Committee or the Superintendent shall be returned to the teacher/group with specific designation of deficiencies by October 20th with 10 days for the resubmittal of the corrected SLO.

Teachers shall administer the final assessment to determine student growth as defined in the approved SGMs.

The District may use shared attribution SGM scores as mutually agreed upon with the Evaluation Committee.

A. Job sharing arrangements: The percentage of SGM scores applicable to teachers in an approved job sharing arrangement shall be mutually agreed upon by the individual teachers in the job sharing arrangement and the Building Principal.

B. Co-teaching arrangements: Teachers who have an approved co-teaching arrangement shall have a percentage of the SGM score for the individual teachers in the co-teaching arrangement based on the time each has spent with the student(s).

Professional Growth Plans and Professional Improvement Plans

Based upon the results of the annual teacher/counselor evaluation, each teacher/counselor must develop either a professional growth plan or professional improvement plan as follows:

A. Teachers/Counselors whose final summative rating is "accomplished" will develop a professional growth plan and may choose their credentialed evaluator from those available to the Board for that purpose, utilizing the components set forth in the "Teacher Evaluation Form."

B. Teachers/Counselors whose final summative rating is "skilled" will develop a professional growth plan collaboratively with his/her credentialed evaluator and will have input on his/her evaluator for the next evaluation cycle, utilizing the components set forth in the "Teacher Evaluation Form."

C. Teachers/Counselors whose final summative rating is "developing" will develop a professional growth plan with their credentialed evaluator. The administration will assign the evaluator for the subsequent evaluation cycle and approved the professional growth plan, utilizing the components set forth in the "Teacher Evaluation Form."

D. Teachers/Counselors whose final summative rating is "ineffective" will develop a professional improvement plan with their credentialed evaluator. The administration will assign the evaluator for the subsequent evaluation cycle and approve the professional improvement plan, utilizing the components set forth in the "Teacher Evaluation Form."

E. Teachers/Counselors on limited contracts that are rated accomplished or skilled in the final year of their contract will be allowed to select their evaluator.

Professional growth and improvement plans must be completed by September 15th of each school year. The Board retains the discretion to place a teacher/counselor on an improvement plan at any time based on the deficiencies in any individual component of the evaluation system.

Core Subject Teachers - Testing for Content Knowledge

Beginning with the 2015-2016 school year, core subject area teachers must register for and complete all written examinations of content knowledge selected by the Ohio Department of Education if the teacher has received an effectiveness rating of "Ineffective" on his/her annual evaluation for two (2) of the three (3) most recent school years.

If a teacher passes the examination set forth above and provides proof of that passage to the Board, the teacher will be required, at the teacher's expense, to complete professional development that is targeted to the deficiencies identified in the teacher's evaluations conducted under this policy.

The following may be grounds for termination of a teacher pursuant to R.C. 3319.16:

A. failing to complete all required written examinations under this section;

B. a failing score on a written examination(s) taken pursuant to this section;

C. a rating of "ineffective" on the teacher's next evaluation after passing all written examinations pursuant to this section and after completion of the required professional development; or

D. failure of a teacher to complete the required professional development.

Any teacher passing the examination set forth above will not be required to take the examination again for three (3) years, regardless of the teacher's evaluation ratings or the performance index score ranking of the building in which the teacher teaches.

No teacher shall be responsible for the cost of taking an examination set forth above.

Board Professional Development Plan

In accordance with the Ohio State Board of Education's State-wide evaluation framework, the Board has adopted a specific plan for the allocation of financial resources to support the professional development of teachers/counselors covered by this policy. The plan will be reviewed annually.

Retention and Promotion Decisions/Removal of Poorly Performing Teachers/Counselors

It is the purpose of this Standards-Based Teacher/Counselor Evaluation Policy to improve the quality of instruction, enhance student learning and strengthen professional competence through meaningful feedback and targeted professional development. In addition, the evaluations produced will serve to inform the Board on employment decisions, i.e., retention, promotion of teachers, renewal of teaching contracts, and the removal/nonrenewal of poorly performing teachers/counselors.

Definitions:

"**Retention**" - for purposes of this policy refers to employment decisions on the question of whether or not to suspend a contract pursuant to a reduction in force, nonrenew a limited or extended limited contract, or terminate employment for good and just cause. In the case of a reduction in force, seniority will not be considered when making decisions on contract suspensions, except in the instance of comparable evaluations. The decision to nonrenew or terminate the contract of a poorly performing teacher may be informed by the evaluation(s) conducted under this policy. However, decisions to nonrenew or terminate a teaching contract are not limited by the existence of this policy.

"**Promotion**" - as used in this context is of limited utility given the fact that teachers covered by this policy are not currently employed in any discernible hierarchy. Nevertheless, when making decisions relative to such matters as determining

department or grade level chairpersons, selections to curricular or strategic planning bodies, or teaching assignments, the Board will consider teacher performance as indicated by evaluations.

"**Poorly Performing Teachers/Counselors**" - refers to teachers/counselors identified through the evaluation process set forth in this policy who demonstrate an inability and/or unwillingness to meet the reasonable expectations of this standards-based evaluation system.

Removal of poorly performing teachers will be in accordance with the nonrenewal and termination statutes of the Ohio Revised Code and/or the relevant provisions of the collective bargaining agreement in effect between the Board and the B.E.A.

Nothing in this policy will be deemed to prevent the Board from exercising its rights to nonrenew, terminate, or suspend a teaching contract as provided by law and the terms of the collective bargaining agreement in effect between it and the B.E.A. The evaluation system and procedures set forth in this policy shall not create an expectation of continued employment for teachers on a limited contract that are evaluated under this policy. The Board reserves the right to nonrenew a teacher evaluated under this policy in accordance with R.C. 3319.11 notwithstanding the teacher's summative rating.

R.C. 3319.02, 3319.11, 3319.111, 3319.112, 3319.114, 3319.22, 3319.222
R.C. 3319.226, 3319.26, 3319.58, 3333.0411
A.C. 3301-35-03(A)
Sub. H.B. 362
H.B. 64 (2015)

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